

**JUSTIFICATION AND APPROVAL (J&A) FOR OTHER THAN FULL AND OPEN
COMPETITION PURSUANT TO FAR SUBPART 6.3**

1. Identification of the agency and the contracting activity:

This is a justification for other than full and open competition for an acquisition being conducted by the Department of State, Embassy Asuncion, Contracting Office.

2. Nature and/or description of the action being approved:

The United States Embassy in Asuncion, Paraguay, requires a sole-source award to Importadora Parana S.A. for the purchase of critical motor spares for the Air Handling Units (AHUs). Importadora Parana S.A. is the local representative of Baldor Motor, which are the motors installed in the AHUs within the compound. The urgency of this purchase is critical, as the non-availability of these parts will severely affect the operation of the AHUs and may cause serious environmental and health hazards to the buildings, which are in constant occupation of many employees.

3. A description of the supplies or services required to meet the Agency's needs (including estimated value):

The purchase involves acquiring critical motor spares for the AHUs to ensure the proper functioning of the HVAC system. These parts are essential to maintain the performance and reliability of the AHUs, ensuring a safe and healthy environment for embassy employees. The estimated cost is \$68,000 USD.

4. An identification of the statutory authority permitting other than full and open competition:

This acquisition is conducted under the authority of 41 U.S.C. 3304, as implemented by FAR 6.3 and substantiated by the following:

- ☒ FAR 6.302-1 – Only one responsible source and no other supplies or services will satisfy agency requirements.
- ☐ FAR 6.302-2 – Unusual and compelling urgency.
- ☐ FAR 6.302-3 – Industrial mobilization; engineering, developmental, or research capability; or expert service.
- ☐ FAR 6.302-4 – International Agreement.
- ☐ FAR 6.302-5 – Authorized or required by statute.
- ☐ FAR 6.302-6 – National Security.
- ☐ FAR 6.302-7 – Public Interest.

5. A demonstration that the proposed contractor's unique qualifications or the nature of the action require use of the authority cited:

Importadora Parana S.A. is uniquely qualified to provide these services to the NEC Asuncion Post based upon the following:

- **Compatibility:** The AHUs in use at the embassy are equipped with Baldor Motors, making it logical and necessary to procure the motor spares directly from Importadora Parana S.A., the local representative of Baldor Motor, to ensure compatibility and optimal performance.
- **Urgency:** The non-availability of these parts will severely affect the operation of the AHUs and may cause serious environmental and health hazards to the buildings.
- **Proven Expertise:** Importadora Parana S.A. has a proven track record of supplying parts for the Baldor Motors within the AHUs at the embassy compound, with detailed knowledge of the equipment's operational constraints.

6. A description of efforts to ensure that offers are solicited from as many potential sources as is practicable:

Given the specialized compatibility required, contacting alternate suppliers was deemed impractical. Importadora Parana S.A.'s established track record and immediate availability make them the most viable option to address the immediate threat to the AHUs' stability.

7. A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable:

The Contracting Officer has determined the anticipated cost/price to the Government for the supplies/services covered by this J&A will be fair and reasonable based on benchmarking against similar purchases, confirming that the proposed cost is fair and aligned with market rates for specialized parts of this nature.

8. A description of the market research conducted (see part 10) and the results or a statement of the reason market research was not conducted:

A market survey was not conducted due to the supplier's unique compatibility with the AHUs. The urgency of mitigating the risk to embassy operations necessitates swift action with a proven supplier.

9. Any other facts supporting the use of other than full and open competition:

Delays in procuring the motor spares could lead to further HVAC system failures, endangering embassy operations. The immediate intervention by a knowledgeable supplier is essential to mitigate ongoing risks.

10. A listing of the sources, if any, that expressed, in writing, an interest in the acquisition:

None expressed interest in writing.

11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required:

For future needs, the embassy may explore broader market options, but immediate requirements necessitate this direct award.

CERTIFICATIONS

TECHNICAL AND REQUIREMENTS CERTIFICATION - FAR 6.303-2(c)

I certify that any supporting data under my cognizance and which form a basis for this justification are complete and accurate to the best of my knowledge and belief.

SIGNATURE:



Nicholas Carros
Facility Manager

Date: 9/7/2025

CONTRACTING OFFICER CERTIFICATION - FAR 6.303-2(b)(12)

I certify that this submission is accurate and complete to the best of my knowledge and belief.

SIGNATURE:



Anthony Sung
Contracting Officer

Date: April 7, 2025